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Reviewed and Approved by:	Candace Alva, Director RA/QA	See M-Files	See M-Files

REVISION HISTORY				
REV. #	CO #	DESCRIPTION	PREPARED BY	DATE
01.00		Original policy	Natan Blanks	March 17, 2020
01.01	DCO00034	Removal of requirement for annual signature of employee confidentialy and compliance agreement (section 1.2)	Candace Alva	Feb 16, 2021

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Workforce Training and Compliance

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1 Workforce Member Confidentiality and Compliance Statement

1.1 Purpose Statement

All Workforce Members are required to certify in writing, by signing the Workforce Member HIPAA Compliance and Confidentiality Statement provided below, that they have received, read, received training on, understand and agree to follow the policies in the manual provided to them and all applicable provisions of HIPAA and the HITECH Act. Also, as part of their compliance with these Policies and Procedures, Workforce Members must certify that they will protect the confidentiality of PHI, including ePHI, and that they will report any unauthorized disclosures of PHI or ePHI and other Security Incidents to the Security Officer or Privacy Officer, as specified in this manual.

1.2 Policy/Procedure

1. All Workforce Members will sign the Workforce Member HIPAA Compliance and Confidentiality Statement provided below prior to being given access to PHI, ePHI or ePHI Systems.
2. The Privacy & Security Officer, Human Resources Manager and/or The Director of Quality and Regulatory will ensure a maintained record on each Workforce Member that includes the original or electronically, signed Workforce Member HIPAA Compliance and Confidentiality Statement. Each Workforce Member HIPAA Compliance and Confidentiality Statement signed by a Workforce Member must be maintained for at least six years from the date of the Workforce Member's signature.
3. The Human Resources Manager or Director of Quality and Regulatory will return a copy of the signed Workforce Member HIPAA Compliance and Confidentiality Statements to the Workforce Member.
4. Any Workforce Member who refuses to sign the Workforce Member HIPAA Compliance and Confidentiality Statement will be denied access to PHI, ePHI, or ePHI Systems.
5. Any Workforce Member who refuses to sign the Workforce Member HIPAA Compliance and Confidentiality Statement may be terminated because that Workforce Member will not be able to perform the essential function of his or her job.

1.3 Administrative details

Responsibility: Privacy Officer

Regulatory Category: Privacy Regulations; Security Regulations

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2 Privacy and Security Awareness and Training

2.1 HIPAA Security Rule Language

Implement a security awareness and training program for members of its workforce (including management). 45 CFR § 164.308(a)(5)(i).

HIPAA Privacy Rule Language: A covered entity must train all members of its workforce on the policies and procedures with respect to protected health information required by the HIPAA Privacy Rule, as necessary and appropriate for Workforce Members to carry out their functions. 45 CFR 164.530(b)

Provide training to employees regarding state and federal law concerning protected health information as necessary and appropriate for the employees to carry out the employees' duties. If the duties of an employee are affected by a material change in state or federal law concerning protected health information, the employee shall receive training within a reasonable period, but within one year of the effective date of the change in the law.

2.2 Purpose Statement

PeriGen has the responsibility under the HIPAA Privacy and Security Regulations for providing and documenting privacy and security awareness and training for PeriGen Workforce Members in order that those persons can properly carry out their functions while appropriately safeguarding PHI and ePHI. This policy reflects PeriGen's commitment to comply with such Regulations.

2.3 Policy/Procedure

1. PeriGen's Human Resource manager will provide training and supporting reference materials to its Workforce Members, as appropriate, to carry out their functions with respect to the privacy and security of PHI and ePHI.
2. PeriGen's Human Resource manager will provide training for new Workforce Members' orientation. The Workforce Members' orientation will occur before any access to PHI is granted and in any case no later than 90 days after the new Workforce Member's onboarding date. With respect to current Workforce Members, PeriGen will provide training to any employees as of the date of this policy who have not yet undergone Privacy and Security Awareness Training, if any. To the extent that a material change in state or federal law and/or the Policies and Procedures in this Manual affects a Workforce Member's function at PeriGen, PeriGen will provide additional training within a reasonable period of time. With respect to a material change in state or federal law, the training must take place no later than one year after the material change becomes effective.
3. As part of its risk analysis, pursuant to its Security Risk Management Policy, PeriGen will determine how often any additional training will be required for its Workforce Members and Users and the method of such training.

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4. PeriGen will maintain sufficient records that document and confirm a Workforce Member's completion of Privacy and Security Awareness Training, such as a document signed by each Workforce.
5. Security awareness training should include information to make Workforce Members aware of and familiar with PeriGen's HIPAA Security Policies and Procedures.
6. PeriGen will provide security information reminders and updates to its Workforce Members, in accordance with the PeriGen Security Reminders Policy.
7. PeriGen will make these Policies and Procedures available for reference and review by its Workforce Members who have access to PHI and/or ePHI.

2.4 Administrative details

Responsibility: Human Resource Manager

Definitions: Workforce Member; ePHI; ePHI System

Regulatory Reference :

- 45 C.F.R. §164.308(a)(5)(i), Security Awareness and Training [Standard; Required]
- 45 C.F.R. 164.530(b), Training [Standard; Required]

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3 Workforce Member Discipline

3.1 Purpose Statement

PeriGen will apply sanctions against Workforce Members, as appropriate, for violations of these HIPAA Privacy and Security Policies and Procedures. PeriGen has chosen a Privacy and Security Officer who, has the requisite authority to ensure the entity properly sanctions Workforce Members as appropriate.

3.2 Policy/Procedure

3.2.1 Minor Occurrences

If the Privacy Officer determines that a Workforce Member's acts or omissions resulted in a Relatively Minor Violation of these HIPAA Privacy and Security Policies and Procedures and no significant violation of any law or regulation, the Privacy Officer will determine whether or not further education, clarification, or other corrective actions are needed. All minor violations will be tracked and reviewed; disciplinary action self-reported violations are outlined in PeriGen's "Disciplinary Action for Self-Reported Violations" Policy (see attached).

3.2.2 Significant Violations

If the Privacy Officer determines that a Workforce Member's acts or omissions resulted in a Significant Violation of these HIPAA Privacy and Security Policies and Procedures or a violation of any law or regulation, the Privacy Officer will report the findings to the Management Committee and will recommend appropriate disciplinary action. The Management Committee will then determine the scope of any disciplinary steps to be taken.

3.2.3 Disciplinary Action

1. Disciplinary action should be imposed commensurate with the seriousness of the security or privacy violation. The forms of discipline are listed in the "**PeriGen Privacy & Security Disciplinary Action Plan"** (attached) and will be followed based on the severity of the violation and according to the type of Workforce Member

2. The Management Committee may consult with legal counsel at its discretion to determine what disciplinary action is appropriate.

3. For self-reported minor violations: See "**Disciplinary Action Policy for Self-Reported Minor Violations**" (section 4).

3.3 PeriGen Privacy & Security Disciplinary Action Plan

Based on the severity of the incident, the order of warnings and course of action are at the discretion of the Privacy and Security Officer, the Privacy & Security Committee and/or the executive leadership of PeriGen. If warranted, an incident can be immediately escalated to the highest tier of action if the event is a repeat occurrence or severe in nature.

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1. Tier 1
   a. Oral warning by executive team and/or;
   b. Written warning in file with associated signatures (if applicable) and/or;
   c. Required additional HIPAA training that is specific to the incident

2. Tier 2
   a. Oral warning by PeriGen's Privacy and Security Officer and/or executive team and/or;
   b. Written warning in file with associated signatures (if applicable) and/or;
   c. Required additional HIPAA training that is specific to the incident and/or;
   d. Required to repeat all parts of the PeriGen Privacy and Security training module.

3. Tier 3
   a. Oral warning by PeriGen's Privacy and Security Officer and/or executive team;
   b. Written warning in file with associated signatures (if applicable);
   c. Required additional HIPAA training that is specific to the incident;
   d. Required to repeat all parts of the PeriGen Privacy and Security–training module.
   e. Meeting with the executive team and PeriGen's Privacy & Security Officer to discuss further action. Disciplinary actions may include the following:
      i. Suspension without pay ii. Reassignment
      iii. Termination

NOTE: *If a workforce member does not complete the assigned disciplinary action as outlined in Tier 1 or 2 by the due date, we reserve the right to escalate the matter to the highest tier.*

3.4 Administrative details

Responsibility: Privacy & Security Officer; Management Committee

Definitions: Workforce Member

Regulatory Reference:

- 45 C.F.R. §164.308(a)(1)(ii)(C), Sanction Policy [Implementation Specification; Required]

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4 Disciplinary Action Policy for Self-Reported Minor Violations

4.1 Purpose

To structure disciplinary action around workforce members who have self-reported multiple minor violations throughout one calendar year. This policy **ONLY pertains to self-reported** violations. Any violation that is found during an audit that was not reported (either by the violator or a known party) will be escalated appropriately. Furthermore, any violation that was done **with intent** will not fall under the provisions of this policy, regardless if it is self-reported.

4.2 Policy

Within one calendar year a workforce member is allowed to make 3 "minor" violations that will be categorized a "Tier 1 violation*" but ***may not*** be subject to any formal write up or additional training. On the 4th violation within the calendar year, the discipline plan is **automatically** escalated to a "Tier 2 violation". Of note, if a violation is deemed to be significantly large in scale or considered a breach, it will be handled as such and will not be applicable to this policy.

**Please refer to the "Disciplinary Action Plan" for reference on Tier 1, 2, and 3 disciplinary action for workforce members.*

4.2.1 Provisions of policy

1. Each workforce member has a maximum of 3 accidental/self-reported violations per calendar year before automatically being escalated to Tier 2 level of disciplinary action *(The Privacy & Security Officer will determine if an incident is minor enough to be included under this guideline- if not the incident will follow normal Tier protocol based on the level of severity. Please refer to the "Disciplinary Action Plan" for reference on Tier 1, 2, and 3 disciplinary action for workforce members.)*

2. All self-reported violations are kept on an excel sheet and documented through a HIPAA decision form, signed by the Director of Quality and Regulatory as well as the Privacy & Security Officer. This log has been active since October 1, 2018 and is updated as incidents occur.

3. Any self-reported violation that has occurred up until the adoption of this policy will be given to the Privacy & Security Officer in a summary report for review

4.2.2 Effective Date

This policy has an effective date at the approval date of the document. See title page.

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5 Security Reminders

5.1 HIPAA Security Rule Language

"Implement periodic security updates."45 CFR § 164.308(a)(5)(ii)(A).

5.2 Purpose Statement

PeriGen has the responsibility under the HIPAA Security Regulations to implement periodic security updates for PeriGen Workforce Members in order that those persons can properly carry out their functions while appropriately safeguarding ePHI. This policy reflects PeriGen's commitment to comply with such Regulations.

5.3 Policy/Procedure

1. PeriGen's Privacy & Security Officer will periodically, as needed, issue security information and awareness reminders to Workforce Members. Such security reminders could include:
   a. Information regarding general security risks and how to follow PeriGen's HIPAA Security Policies and Procedures;
   b. Information regarding how to use the applicable ePHI System(s) in a manner that reduces security risks; and/or
   c. Legal and business responsibilities of PeriGen for protecting its ePHI Systems.
2. PeriGen will issue security reminders immediately upon, or within a 30 day following the occurrence of any of the following events:
   a. Substantial revisions are made to PeriGen's Security Policies and Procedures;
   b. Substantial new security controls are implemented, or significant changes are made to existing security controls;
   c. Substantial changes are made to PeriGen's legal or business responsibilities;
   d. Substantial threats or risks arise against any ePHI System;
   e. PeriGen introduces a new ePHI System or makes significant changes to existing ePHI Systems that it owns or controls; or,
   f. An ePHI System to which PeriGen has access but no control over makes a significant change to its system.
3. Means of providing security information and awareness reminders and updates may include, but are not limited to:
   a. Email reminders;
   b. Posters;
   c. Letters;
   d. Workforce Member meetings;
   e. Information system sign-on messages;
   f. Internal newsletter articles; and/or
   g. Information posted to PeriGen's external (i.e. public website) and/or internal website (i.e. SharePoint).

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5.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: Workforce Member; ePHI; ePHI System

Regulatory Reference:

- 45 C.F.R. §164.308(a)(5)(ii)(A), Security Reminders [Implementation Specification; Addressable]

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6 Availability

6.1 HIPAA Security Rule Language

"Make documentation available to those persons responsible for implementing the procedures to which the documentation pertains." 45 CFR § 164.316(b)(2)(ii).

6.2 Purpose Statement

PeriGen will make all documentation available to those persons responsible for implementing the procedures to which the documentation pertains.

6.3 Policy/Procedure

1. PeriGen will make the following documentation available:
   a. Policies and procedures regarding the security of ePHI and ePHI Systems.
   b. All documentation that records any updates, revisions, modifications, or deletions made to existing Security Policies and Procedures.
   c. All policies and procedures no longer in effect for a certain Security Regulation requirement or implementation specification.
   d. Any other documentation that the Privacy & Security Officer deems appropriate to retain and to make available to its Workforce Members regarding PeriGen's Security Policies and Procedures.
2. The Privacy & Security Officer will be responsible for ensuring that such documentation as required by the HIPAA Security Regulations is made available to its Workforce Members.

6.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: ePHI; ePHI Systems; Workforce Member;

Regulatory Reference:

- 45 C.F.R. §164.316(b)(2)(ii), Availability [Implementation Specification; Required]

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Appendix – Example Workforce Member Compliance & Confidentiality Statement

I, _____ , acknowledge that I have received, read, received training on, understand and agree to follow the PeriGen HIPAA Privacy and Security Policies and Procedures that have been provided to me. Also, I acknowledge that during the course of performing my assigned duties at PeriGen, I may have access to, use, or disclose Protected Health Information (PHI) or electronic PHI (ePHI). I agree to handle such information in a confidential manner at all times during and after my employment and commit to the following obligations:

1. I will use and disclose PHI, including ePHI, only in connection with and for the purpose of performing my assigned job functions.

2. I will request, obtain, or communicate PHI, including ePHI, only as necessary to perform my assigned job functions and will refrain from requesting, obtaining or communicating more PHI, including ePHI, than is necessary to accomplish such functions.

3. I will use reasonable diligence† to properly secure PHI, including ePHI, on my Workstation and will take steps to ensure that others cannot view or access such information. These steps include but are not limited to utilizing a locked bag when transporting PHI.

4. I will use and disclose PHI, including ePHI, solely in accordance with the applicable federal and state laws and regulations and the PeriGen HIPAA Privacy and Security Policies and Procedures. I also agree, in a timely manner, to familiarize myself with any periodic updates or changes to these policies that are communicated to me.

5. I will immediately report any unauthorized use or disclosure of PHI, including ePHI, that I become aware of to the appropriate PeriGen Official.

6. I understand and agree that my failure to fulfill any of the obligations set forth in this Statement and any failure to comply with PeriGen's HIPAA Privacy and Security Policies and Procedures will result in my being subject to appropriate disciplinary action.

_____ _____

Workforce Member's Signature Security Officer's Signature

_____ _____

Workforce Member's Printed Name Date

Workforce Member's Job Title/Department Director of Quality and Regulatory Signature

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_____

_____

Date Date

†Reasonable Diligence is defined by HIPAA (45 CFR 160.401) to mean "the business care and prudence expected from a person seeking to satisfy legal requirements under similar circumstances."

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